Harper
Houf Peterson
Righellis Inc.
ENGINEERS ◆ PLANNERS
LANDSCAPE ARCHITECTS ◆ SURVEYORS
1220 Main Street, Suite 150, Vancouver, WA 98660
PHONE: 360.750.1131 www.hhpr.com FAX: 360.750.1141

January 25, 2021

AJ Panter
Executive Director
Facilities Support Services
Vancouver Public Schools
Vancouver, Washington
aj.panter@vansd.org

SUBJECT: **HARNEY ELEMENTARY SCHOOL PARKING LOT EXPANSION:**
PROPOSALS – PLANNING, SURVEYING, ENGINEERING & CONSTRUCTION SERVICES

Dear AJ:

Harper Houf Peterson Righellis Inc. (HHPR) is pleased to submit a proposal for your consideration to provide the following services associated with the Parking Lot Expansion project at Harney Elementary School.

- City Code Review and Parking Study
- Land Use Planning and Permitting
- Surveying
- Civil Engineering
- Lighting Analysis and Engineering (by Glumac – lighting sub-consultant)
- Construction Services

Please do not hesitate to give me a call if you have questions regarding any part of the scope, fee, and information contained in this proposal. Tailoring these proposals to your needs is our priority.

Thank you for the opportunity to provide these services.

Sincerely,

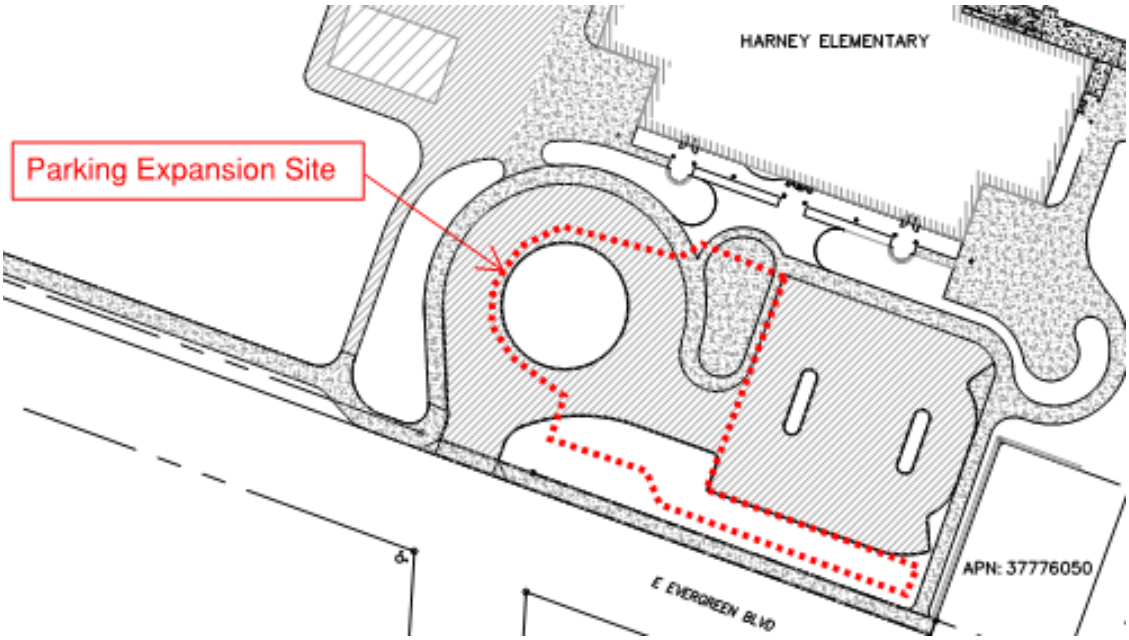
HARPER HOUF PETERSON RIGHELLIS INC.

Charles L. Harper, P.E.
Principal

SCOPE OF SERVICES

Project Understanding

Vancouver Public Schools (VPS) proposes to expand parking at Harney Elementary School. The subject property is approximately 13.5 acres in size, zoned R-18 (Higher Density Residential District) and located at 3212 E. Evergreen Boulevard. The site has been used for an elementary school for nearly one hundred years and has been modified several times over the years including the existing building which was rebuilt in 1996 subject to a conditional use permit issued by the City of Vancouver. In 2018, the size of the building was expanded by four additional classrooms ~ (4,995 SF total). The parking lot expansion will most likely require a Type II Site Plan review, a SEPA review, and possibly a type II Conditional Use Modification. We will know if the City will require the Conditional Use Modification after the pre-application conference. The following shows the area for the proposed parking lot expansion.



Task A: Land Use Planning - Schools are permitted conditionally within the R-18 Zone. The following outlines the tasks to meet the objectives in the project understanding. The tasks below are based on our knowledge of the review process in the City of Vancouver.

1. Parking Study
    - Parking Study - HHPR will conduct a study of the prior land use decisions and related conditions, the Community Development Code, existing parking on the site and on similar elementary schools within the district, and information provided by VPS in order to justify the maximum amount of parking that could be reasonably permitted on the site per City code. We will share this information with the District to determine the size and layout of the parking lot expansion.
2. Preapplication Conference
    - Pre-app. - Once a site plan has been selected by VPS, the land use planner will prepare, submit,

and attend a pre-application meeting with the City to discuss the project proposal and verify the applicable standards, land use approval process, and approval criteria.

3. Land Use Submittal Materials
    - Land Use Narrative - HHPR Planner will write a narrative and findings required for the land use application submittal. The document makes preliminary findings for the applicable standards of the Vancouver Land Use Development Code. The narrative will be based on the conceptual drawings and technical documents provided by the design team.
    - Service Provider Letters - Obtain County Health Department Letter. Prepare and submit the application for the Development Review Evaluation Letter from Clark County Health on behalf of the project. The Health Department Letter is required for the land use submittal package to the City of Vancouver.
    - FAA Notice - File the written notice with the Federal Aviation Administration, Pearson Airfield Airport Operator, and the State Aeronautics Division *(if required)*.
    - SEPA Checklist - Prepare a SEPA Checklist for the project. This is a required item for the land use submittal package to the City of Vancouver.
4. Land Use Application Coordination
    - Team Meetings - Prepare for and attend up to three (3) meetings with the design team and City as needed.
    - General Communication & Coordination - Coordinate the preparation and assembly of the materials required for the land use application submittal checklist. This includes ensuring receipt of land use exhibits and supplemental materials from the design team that will be included as attachments in the electronic upload of the application submittal package.
    - Application Submission - An HHPR planner will be responsible for the submission of required application materials to the City Planning Department for review.
    - Point of Contact - An HHPR planner will serve as the point of contact for City Planning Staff during the land use review and will maintain communication with the City to track the application status, review comments received by public and review bodies, ask questions posed by the design team, problem-solve challenges that arise, and prepare supplemental information, as needed, to demonstrate compliance with development standards.
    - Address Completeness Items - If the application is deemed incomplete, the Planning team will revise the narrative to provide clarifications or address minor design changes, in addition to coordinating the work of the design team to revise applicable exhibits or plan sheets. Resubmit application materials as needed.
    - Review Land Use Decision - The Planner will review the City decision and discuss the implications of the conditions of approval with the client.

Task Assumptions:

- *All Agency and recording fees to be paid by VPS.*
- *Any studies or drawings not part of this scope will be provided by others (i.e. arborist report, traffic study, geotechnical, etc.).*
- *HHPR will represent the project through the land use entitlement process.*
- *This proposal assumes that any review of the project would be a Type II and not subject to a public hearing.*
- *Any adjustments or variances to standards within the development code would be subject to additional scope and fee.*
- *Any work outside of this scope will be considered as additional services that will be billed on a time and materials basis with prior approval of VPS.*

Task B: Surveying and Mapping

1. HHPR will perform limited field topographic survey of key areas necessary to create a project base map utilizing existing survey data, school record drawing information, and newly collected field topographic data.
2. HHPR will prepare the project base map to be utilized for the design plans.

Task Assumptions:

- *Boundary or right-of-way survey is assumed not required and therefore not be included.*
- *One day (8 hrs.) field crew time is included in the estimated fee budget.*

Task C: Civil Engineering and Plans - The Civil Engineering tasks below are based on our knowledge of the review process in the City of Vancouver and the Project Understanding noted above.

1. Based on topographic survey, city development code requirements, and VPS input, HHPR will develop a preliminary layout to maximize the number of spaces (permitted by City code) on site and can be located in the area shown above.
2. HHPR will prepare and distribute the project site plan to VPS for the parking lot layout approval.
3. HHPR will design the grading and surfacing for the parking lot and adjacent walkways, including site details.
4. Erosion control plans and details will be prepared per City and DOE requirements.
5. HHPR will analyze the storm drainage runoff for quantity and quality treatment based on City code and prepare preliminary and final Stormwater Reports required for Site Plan (Land Use) and Engineering Plan Review submittals, respectively
6. HHPR will prepare and submit project plans to VPS for review at the 60% (Land Use Review) and final design (Engineering Plan Review) stages.
7. HHPR will prepare the final plans for permit and bidding. HHPR will coordinate with City Staff during review and approval.

Task Assumptions:

- *The existing Minister-Glaeser Surveying, Inc. site survey provided for the school addition project in 2018 will be the base CAD file for the parking lot expansion and is assumed sufficient for design and plans. If additional survey is required, if is assumed VPS will contract directly with Minister-Glaeser Surveying.*
- *Preparation and recordation of easements and right-of-way dedications requirements are unknown at this time, and therefore not included in the proposal. If required, preparation and recordation for R/W and easement dedication will completed by the project surveyor (Minister-Glaeser) as contracted through VPS. If preferred by VPS, HHPR will provide these services on a time and materials basis with prior approval of the VPS.*
- *Site geotechnical report to be supplied by VPS. Report shall include recommendations for earthwork, pavement structure, and soil infiltration based on site testing (to current City and DOE requirements).*
- *Stormwater runoff to be treated and infiltrated on site.*
- *Any work outside of this scope will be considered as additional services that will be billed on a time and materials basis with prior approval of the VPS.*

Task D: Landscape Architecture

1. Prepare tree, shrub and ground cover planting beds for the new parking addition.
2. Prepare tree, shrub and ground cover plantings for setbacks.
3. Prepare new irrigation and irrigation repair design-build plans and specifications. *The repair is in association with the existing lawn irrigation that will be removed or modified with the parking expansion.*
4. Prepare plans and estimates for the 30% (layout design), 60% (Land Use Review) and final design (Engineering Plan Review) stages.

Task Assumptions: The irrigation repair work is in association with the existing lawn irrigation that will be removed or modified with the parking expansion. VPS to provide as-built or record information of the existing irrigation systems.

Task E: Lighting Design (per Glumac sub-consultant Scope and Fee Proposal – Exhibit B)

Task F: Cost Estimate

1. Prepare a rough "order of magnitude" estimate at concept stage (30%).
2. Prepare Cost Estimates at completion of the 60% and final stages.

Task G: Project Specifications

1. Prepare the technical specifications with final design for bidding. Specifications will be based on the VPS Standard Specifications format and bidding documents.

Task Assumptions: Assumes VPS will prepare the front-end and bid documents.

Task H: DOE Underground Injection Control (UIC) Registration and SWPPP

3. HHPR will fill out the UIC registration forms for VPS signature. The City requires that these be submitted prior to signing off on the Engineering Plan Review.
4. HHPR will prepare the Stormwater Pollution Prevention Plan (SWPPP) for the Project.

Task Assumptions: Assumes VPS pay any necessary fees.

Task I: Bidding / Construction Administration

1. Prepare one addendum during the bidding process.
2. Provide digital information to contractors as required, during bidding process.
3. Attend the pre-construction meeting and coordinate construction activities with the Contractor and VPS Staff.
4. Hold and facilitate up to ten (10) construction meetings with the Contractor and City.
5. Review and process "request for information" from the Contractor.
6. Review and process "change order proposals".
7. Assist VPS staff with review and processing for "pay requests".
8. Provide construction observation services *(assumes 5 hours per week for 10 weeks).*
9. Prepare observation reports and project photo log *(when on-site).*
10. Visit the site and prepare a site work construction punchlist when construction is "substantial complete".
11. Prepare Landscape certification letter as required by the City.
12. Review and process "project closeout" documents.

Task Assumptions:

- *Assumes VPS will be responsible for preparing the final bid documents and administer bidding procedure and award.*
- *Assumes a construction timeline of 10 weeks with a daily inspector on-site 5 hours a week. If construction is longer, project hours in Task H will be billed at our standard rates.*

Task J: Construction Engineering and Record Drawings

1. Prepare, submit and process as-builts for the site improvements with the City.

Task Assumptions: Does not include preparation of list of "cost and quantities" (Contractor responsibility), "bill of sale" (owner responsibility), or easements (project surveyor responsibility).

PROPOSED PROFESSIONAL FEES

Based on the preliminary scope of services and assumptions listed above, Harper Houf Peterson Righellis Inc. proposes to be compensated on a time and material basis for Tasks A - J, based on the following estimated fee budget breakdown. The following approximates the breakdown and is offered for informational purposes only; actual distribution by task may vary as they are performed.

HHPR - Estimated Fee Budget	
Mngmt/Engineering/Constr.	$63,995.00
Surveying	$3,400.00
Planning	$21,620.00
Landscape	$9,485.00
GLUMAC (Lighting)	$20,000.00
Total Estimated Budget	**$118,500.00**

AGREEMENT

Please refer to Exhibit A (attached) for HHPR's Standard Terms and Conditions. Changes to the assumptions or project description that result in significant revisions to our work will be considered additional services. The fee for additional services will be discussed and agreed upon prior to performing those services.

If you agree with this proposal, please sign on the space provided and return a signed copy.

ACCEPTANCE AND AUTHORIZATION

BY: _____

TITLE: _____

DATE: _____

EXHIBIT A – STANDARD TERMS AND CONDITIONS

Unless otherwise stated (or enclosed) in the contract, the following terms and conditions will apply.

Authorization to Proceed. Any request by Client for HHPR to proceed with work shall constitute an express acceptance to all terms of this agreement, including these general provisions.

Termination and Assignment. Either Client or HHPR may terminate this Agreement by giving 30 days written notice to the other party. In such event, Client shall immediately pay HHPR in full for all work previously authorized and performed prior to effective date of termination. This Agreement is between Client and HHPR and is not transferable without the written consent of the other party.

Fees and Estimates. Charges for services will be billed in accordance with HHPR's standard bill rates. Bill rates are reviewed and may be adjusted annually.

Indemnification, Insurance & Limitation of Liability. Client hereby agrees to indemnify and hold harmless HHPR from any claim, demand, loss or liability, including reasonable attorney's fees that results from for any loss, damage, or liability arising from any acts by the Client, its agents, staff, and/or other consultants or agents that act at the direction of Client.

HHPR is covered by a general liability insurance policy with an aggregate limit of $2 million / $1 million per occurrence and a professional liability with an aggregate limit of $2 million / $2 million per claim. Client agrees that in no case shall HHPR's liability to the Client for any cause or combination of causes, in the aggregate, exceed the amount of HHPR's remaining professional liability coverage.

Professional Standards. HHPR services shall be performed in a manner consistent with that degree of care, skill, and diligence maintained by professionals providing similar services in HHPR's local community at the time that HHPR provides services under this Agreement. HHPR makes no warranties, whether express or implied, with respect to the services rendered hereunder.

Ownership of Documents. It is understood and agreed that the calculations, drawings, and specifications prepared pursuant to this Agreement ("Work Product"), whether in hard copy or electric media including BIM models form, are instruments of professional services intended for one-time use by Client only for this project only. Work Product is and shall remain the property of HHPR. Client shall not obtain the right to use the Work Product, even for one-time use unless all amounts due under this Agreement are paid in full and HHPR agrees in writing. If Client is in possession of any Work Product and has not paid any amount due hereunder, HHPR may demand return of the Work Product, and may specifically enforce Client's obligation to return such Work Product.

Payment Terms & Conditions. Monthly invoices will be issued for all work covered by this agreement. Client agrees that if it disputes any portion of an invoice, Client must notify HHPR of such dispute in writing within 30 days of the invoice date or will otherwise waive any right to dispute the invoice.

Invoices are due and payable on receipt. All amounts more than 30 days past due will be subject to finance charges. Finance charges are computed at a periodic rate of 1.5% per month. Failure to timely pay any amounts is a material breach of this Agreement. In such event, HHPR may suspend service and obligations and may further withhold plans, documents, and other information. HHPR may claim a lien for all materials, labor, and services furnished if any amount due hereunder is not timely paid.

In addition to the principal amount and finance charges due, Client agrees to pay HHPR all collection costs that HHPR incurs, regardless of whether or not litigation is initiated, including but not limited to reasonable attorney's fees, court costs, and charges for HHPR staff time (at HHPR's standard rates).

Notice of Claims. Client shall, and expressly agrees to, provide HHPR immediate written notice of any facts that could potentially result in any potential claim against HHPR, including but not limited to any dispute, any claimed damages, any perceived failure by HHPR, or otherwise. As a condition precedent to any recovery from HHPR, Client shall give HHPR written notice of any such claim or facts that could result in a claim not later than ten (10) days after the date of the occurrence of the event causing the potential claim. Client's failure to provide such notice, for any reason, shall constitute waiver of such claim.

Venue. Any litigation initiated in connection with this agreement shall take place in Multnomah County, Oregon, unless such case involves a lien claim that must be litigated elsewhere as a matter of law. All claims of any nature that relate to this Agreement shall be subject to Oregon law, unless such claims relate to the foreclosure of a lien and are, as a matter of law, subject to the laws of another state.

Enforceability / All Terms Material. All provisions herein are material to HHPR's agreement to provide services, and were expressly negotiated by the parties. In case any one or more of the provisions contained in this agreement shall be held illegal, the enforceability of the remaining provisions contained herein shall not be impaired.

GLUMAC
A TETRA TECH COMPANY
engineers for a sustainable future™

Vancouver Public School Harney Elementary School

New Parking Lot Site Lighting Fee Proposal

Prepared by:

GLUMAC
A Tetra Tech Company

900 SW Fifth Ave., Suite 1600
Portland, OR 97204
Phone Number (503) 227-5280

Glumac Proposal No. P21US282786

GLUMAC
A TETRA TECH COMPANY
engineers for a sustainable future™

January 25, 2021

Chuck Harper, P.E.
Principal
Harper Houf Peterson Righellis Inc.
1220 Main Street, Suite 150
Vancouver, WA, 98660
T: 360.750.1131
Email: Chuck@hhpr.com

Subject: Electrical and Lighting Design Fee Proposal
VPS Harney Elementary School New Parking Lot

Dear Chuck:

Glumac is pleased to provide the enclosed fee proposal for the VPS Harney Elementary School New Parking Lot project, located in Vancouver, WA.

We believe you will find Glumac especially qualified for this project because of our:

- **Experience:** Glumac has familiarity with Vancouver Public Schools from a number of recent projects including: Truman, Walnut Grove, Salmon Creek and Harney Elementary School.
- **Sustainable Design Experience:** Glumac is a leader in cost-effective and innovative sustainable design solutions. Our staff of 100 LEED APs has designed nearly 250 LEED Certified projects, including more than 40 LEED Platinum projects, as well as 1 WELL Certified project, 7 WELL Certification pursuits, 3 WELL Assessments, and 5 Living Building Challenge pursuits including 2 Glumac offices. Our focus is designing "Green Buildings that Work" and providing value to owners and users with the best engineering and commissioning solutions.
- **Location:** Glumac's Portland, Oregon office intends to support this design and will be able to leverage proximity to the project location for design meetings or onsite support as needed.
- **Staff:** Glumac is a full service MEPT engineering, design, and commissioning firm with a staff of more than 300. We leverage each individual's special expertise to allow us to best serve our client's needs.

Please call us if you have any questions or comments so we may tailor the scope of services and fee to match your requirements. We appreciate the opportunity to be of service and look forward to working with you and the rest of the team on this project.

Sincerely,

Jeremy M. Toews

Jeremy Toews, PE
Project Engineer
GLUMAC
A Tetra Tech Company

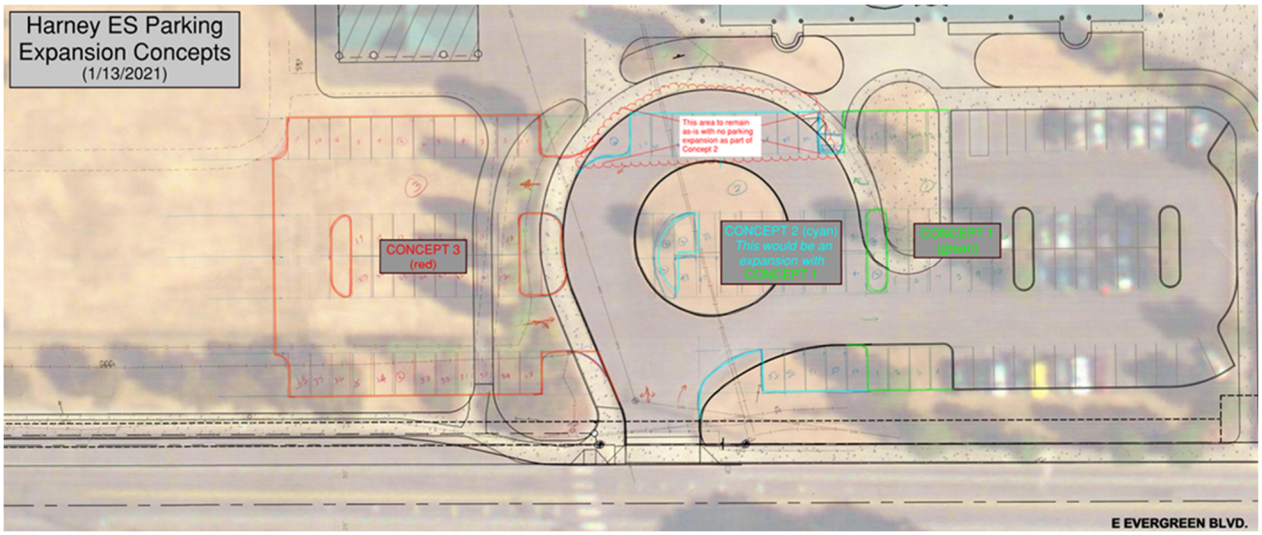
GLUMAC
A TETRA TECH COMPANY
engineers for a sustainable future™

FEE PROPOSAL

VPS HARNEY ELEMENTARY SCHOOL
NEW PARKING LOT

PROJECT SCOPE

This proposal covers site lighting associated with the renovation and expansion of an existing parking lot to include approximately 43 parking stalls. The scope includes areas indicated below as concept 1 and concept 2. Concept 3 area is excluded.



DESIGN & CONSTRUCTION SCHEDULE

We anticipate a project “kick-off meeting” February 2021, with design and construction having the following durations:

PHASE	WEEKS
Design Development	4
Construction Documents	4
Permitting	4
Construction Administration	16

We assume the design schedule is continuous and there will be no significant delays between phases.

SCOPE OF SERVICES

Design Development

We will:

A. (1) Site visit to verify existing conditions such as pole locations, luminaire orientation, and current light levels. (VPS will need to provide access to the site at night).

B. Provide Design Development Documentation, issued at 100% completion level to include the following:
   1. Lighting drawings including site lighting plan, luminaire schedule, photometric plan and lighting cut sheets.
   2. Draft specifications (format to be provided by architect/civil engineer)
   3. Preliminary Lighting Control Basis of Design included on lighting drawings.

C. We anticipate review comments from VPS and the City of Vancouver at the 100% DD.

D. We assume (2) conference call design meetings with VPS during Design Development.

Construction Documents

We will:

A. Provide Construction Documentation, issued at Permit and Issued for Construction (IFC):
   1. Lighting drawings including site lighting plan, luminaire schedule, photometric plan and lighting cut sheets.
   2. Electrical drawings including circuiting on lighting plan and panel schedules indicating circuits utilized for lighting purposes only. Circuiting will only be provided for luminaires and associated lighting control power requirements.
   3. Lighting Control Basis of Design included on lighting drawings.
   4. Updated specifications (format to be provided by architect/civil engineer)
   5. If electrical permit is through Washington Labor and Industries, permit fees shall be provided by owner.
   6. Provide a final IFC set to incorporate permit and owner comments.

B. We anticipate (2) conference call design meetings with VPS during Construction Documentation.

Permitting

A. We have included addressing two (2) rounds of permit review comments from City of Vancouver inclusive of re-issuing drawings.

Construction Administration

Construction is anticipated to take 4 months between May and August 2021.

We Will:

B. Review submittal material for substantial conformity with the intent of the contract plans and specifications.

C. Assist with review of lighting and electrical related RFIs (Request for Information).

D. Provide site observation(s) during the Construction Phase and prepare a written summary of the visit to become generally familiar with the progress and quality of the Contractors' work and to determine if the work is proceeding in general conformance with the Contract Documents. Such observation(s) shall not be construed as approval or guarantee of the Contractor's performance or safety measures. We have included two (2) site visits in our fee proposal.

E. Any site re-visit to observe corrections noted in the site visits will be the responsibility of the General Contractor and has not been included in the scope of this proposal.

DESIGN ASSUMPTIONS

Our basic scope of design services is based on the following design assumptions:

A. SITE ELECTRICAL: The service design is from the secondary terminals of a utility company transformer. Design of a public utility or campus infrastructure, including vaults, manholes, and conduit/duct banks from the campus utility to the building's point of service would be by the utility company or the Civil Engineer.

B. SCOPE CHANGES: Work resulting from significant changes in project requirements after acceptance of the preliminary design is not included.

C. SITE OBSERVATION: Observation of the construction is limited to that defined in the Construction Administration Phase Services above.

D. ALTERNATIVE DESIGN: We have not anticipated preparation of extensive additive or deductive alternate designs for comparative bidding purposes.

E. STATIONING: Our scope of work does not include determining stationing information for any of the pole locations. Civil Engineer responsible for scheduling any ROW fixtures as well as providing exact dimensioning.

F. RE-DESIGN: We have included a linear approach to the design. Redesign required due to a construction cost guarantee by the prime design professional or for other reasons that are not the fault of the Consulting Engineer is not included.

G. ADDITIONAL CONSULTATION: Our scope of work is limited to those items noted above. Consultation on special problems, feasibility studies, reports and appraisals is not included.

H. ELECTRICAL CAPACITY: Our scope of works assumes the existing electrical infrastructure can meet the power requirements of the new lighting. This assumes either existing lighting that will be removed is a larger load than the new lighting installed, or additional lighting installed will not cause any changes to the existing electrical system (with the exception of new breakers). No additional services, transformers, switchboards or panelboards are part of this scope.

I. EMERGENCY POWER: Our scope of work is limited to “normal” power only. No emergency or generator backed up power is within this scope of work. All luminaires are assumed to require normal power only.

J. LIGHTING CONTROL BASIS OF DESIGN: Our scope of work is limited to a lighting control narrative. Exact manufacturer, equipment and devices will not be specified. A lighting control manufacturer shall be able to bid the controls based on the narrative provided and provide a fully functional system that meets the functions described in the narrative.

K. SITE POWER: Our scope is limited to circuiting parking lot lighting and does not include any additional exterior power requirements, including, but not limited to receptacles, event power, gate power, EV chargers, etc.

L. PROLONGED CONSTRUCTION ADMINISTRATION: We have based our proposal upon the schedule noted earlier. Prolonged support services for construction if initial construction time schedule is exceeded by more than 10 percent (10%) through no fault of the Consulting Engineer would result in a request of additional funding.

M. PERMITS: The Contractor will be responsible for submitting and procuring the MEP permit. Submission to the Building Department or attendance at “express plan check” is an additional service.

N. CONSULTANT SERVICES: Retention of other consultants, is not included.

O. ELECTRONIC DESIGN DOCUMENTATION: The project will be completed using AutoCAD.
   1. AutoCAD Documents
      a. Civil Engineer provides CAD backgrounds at mutually agreeable milestones.
      b. Civil Engineer X-ref file names and insertion points remain the same throughout the length of the project.
      c. Backgrounds provided one (1) weeks prior to each design phase submission.
      d. Glumac will use the standard AIA-based layering system.

P. ADDITIONAL SERVICES: Services other than those listed under the basic Scope of Services above, or Terms and Conditions (since the Prime Agreement has not yet been provided), that are above and beyond those attached, would be individually contracted as Additional Services, in advance and in writing. Glumac reserves the right to request

additional fees to align the scope of work within this fee proposal with the final contract requirements. Consultants will be bound to terms of the Prime Agreement.

Q. STREET AND SIDEWALK LIGHTING: Our scope of work excludes any lighting requirements for streets and sidewalks that may lie adjacent to the project site.

R. COST OPINIONS: Any cost opinions provided by Glumac will be for specified lighting only and excludes labor/installation.

S. SITE VISITS: Prior to performing site visits, the manager of the site is required to provide a site safety plan for review, if requested.

PROFESSIONAL FEES

You will be invoiced monthly at our standard hourly rates (schedule attached) up to a maximum fee of $20,000.

REIMBURSABLE EXPENSES

We propose to invoice for reimbursable expenses including travel, mileage and rental car.

TERMS & CONDITIONS

The following Terms and Conditions will govern all services performed on behalf of Client and are hereby incorporated into the Engineering Fee Proposal.

1. **Payment.** All fees and other charges will be billed to Client monthly and will be due and payable no later than 30 days after the date of invoice. Client will pay Glumac, Inc. ("Glumac") interest on past due amounts at the rate of 1.5 percent per month or the highest amount permitted by law, whichever is greater. In addition to all other remedies, Glumac may withhold delivery of services, reports, plans, specifications, documents or other deliverables if Client fails to pay an invoice when due. Payment to Glumac will not be withheld, postponed or made contingent on the construction, completion or success of the project or upon receipt by the Client of project funds, offsetting reimbursements, or credits from other parties. No withholding, deductions or offsets shall be made from Glumac's compensation for any reason unless Glumac has been found to be legally liable for such amounts. Payment of Glumac's fees shall be a condition precedent to bringing any action or suit against Glumac.

2. **Contingency Fund.** The Client and Glumac agree that changes may be required to the plans and specifications during the various phases of design, development, and construction, and therefore the cost of the project may exceed the estimated construction cost. The Client will set aside a reserve in the amount of 10% of the estimated construction cost as a contingency reserve to be used, as required, to pay for any such changes. The Client waives any claim against Glumac or Glumac's subconsultants with respect to any increased costs to the extent of the contingency reserve due to such changes or due to claims made by the construction contractors relating to such changes.

3. **Additional Services.** Any services not explicitly described as being performed by Glumac or its subconsultants are excluded. If agreed to in writing by Client and Glumac, Glumac will provide additional services. Client will pay Glumac for such additional services in accordance with Glumac's current fee schedule or as otherwise agreed by Client and Glumac in writing. These Terms and Conditions will apply to all additional services provided by Glumac. In the case of additional services added to the Engineering Fee Proposal, Glumac's liability shall be limited to the extent of the additional fee for the specific additional services added.

4. **Professional Standards.** Subject to all conditions set forth herein, Glumac will only be liable for breaching its obligation to perform its services to the level of competency maintained by other practicing engineering professionals in the same or similar community performing the same services at the same time as they were performed by Glumac. Glumac makes no warranties, either express or implied. Glumac does not guarantee the completion or quality of performance of contracts by the construction contractor or subcontractors, or other third parties, nor accepts responsibility for their acts, omissions or any safety precautions.

5. **Independent Contractor.** The relationship of Glumac to Client shall at all times be that of an independent contractor. Glumac shall not be liable for the acts of Client or its agents in performing Work.

6. **Document Ownership.** Glumac holds copyright for all tracings, calculations, and other original documents produced by Glumac and such documents shall be the property of Glumac, except when otherwise provided by law, governmental requirement, or by prior agreement, these documents become public property or the property of the Client. A limited license is granted to use the documents for the specific purposes and project covered by the Agreement. Reproduction of these documents either in hard copy or soft copy (including posting on the web) is prohibited without copyright permission. No right to create modifications or derivatives of Glumac documents is granted pursuant to this limited license. You may not remove any copyright or other proprietary notices contained in the documents and information. Any product, process, or technology described in the documents may be the subject of other Intellectual Property rights reserved by Glumac. The drawings, specifications, and reproductions thereof are instruments of service to be used only for the specific project covered by the Agreement between the Client and Glumac. Glumac assumes no liability for misinterpretation, modification, or misuse by others of any instruments of service prepared by Glumac in accordance with its services.

7. **Electronic Documents.** If Glumac provides Client any design documents, including but not limited to plans and specifications, in electronic form ("Electronic Documents"), acceptance and use of the Electronic Documents by Client shall be at Client's sole risk and Client will: (a) Waive and covenant not to sue Glumac alleging any inaccuracy or defect in the Electronic Documents; (b) Agree that Glumac makes no representation with regard to the compatibility of the Electronic Documents with Client's software or hardware; and (c) to the fullest extent permitted by law, indemnify, hold harmless, reimburse and defend Glumac from, for and